

বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Cox's Bazar

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন

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Md. Osman and another

আবেদনকারী

মাধ্যম

Mr. Alamgir Hossain, Advocate

বনাম

The State

Ms. Shiuli Khanom, D.A.G along with

Mr. S.M. Emamul Musfiquir, A.A.G

Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	19.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 124 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 124 days in filing the revision is hereby condoned. Let records be called for. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 14.05.2024 passed by the learned Additional Sessions Judge, 4th Court, Cox's Bazar in Criminal Appeal No. 16 of 2016 dismissing the appeal but modifying the judgment and order of conviction and sentence dated 04.01.2016 passed by the learned Senior Judicial Magistrate, Chokoria, Cox's Bazar in G.R. No. 110 of 2009 (Chokoria) arising out of Chokoria Police Station Case No. 11 dated 05.04.2009 convicting the convict petitioners under section 323 of the Penal Code, and sentencing thereunder to suffer rigorous imprisonment for 01 (one) year instead of convicting under section 324 of the Penal Code, and sentencing thereunder to suffer rigorous imprisonment for 01 (one) year and 03(three) months should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioners 1. Md. Osman, son of late Abul Kashem @ Abul Hasem, 2. Obaidul Hakim, son of late Sultan Ahmed be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Senior Judicial Magistrate, Chokoria, Cox’s Bazar. The rule is made returnable within 4 (four) weeks from date. The petitioners shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o